

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 12, 2026
8:30 a.m.

2. BRANDON CASKEY V. DAWN CASKEY

26FL0706

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 24, 2026, to (1) modify child custody and visitation, (2) modify child and spousal support, (3) award attorney fees and costs, (4) authorize immediate sale of the marital residence, and (5) set aside the temporary Domestic Violence Restraining Order (DVRO) issued in the related case, El Dorado Superior Court Case No. 26FL0537, on July 14, 2026.¹ The RFO also included a request for temporary emergency orders, which the court denied, and a request to shorten time, which the court granted. The court ordered Petitioner to serve the RFO and ex parte orders upon Respondent no later than July 29, 2026, and ordered Respondent to file a responsive declaration no later than August 05, 2026.

On July 23, 2026, Petitioner filed an Income and Expense Declaration (I&E), a copy of which was served upon Cambridge Legal — Respondent's attorney of record in Case No. 26FL0537 — by mail and email that same day. Respondent has not appeared in the instant case and thus, has no attorney of record in this case. Therefore, service of the I&E upon Cambridge Legal does not constitute valid service upon Respondent in this case.

Similarly, proof of service attached to the RFO shows the moving papers were served upon Cambridge Legal only by mail and email on July 23, 2026. There is no valid proof of service of the RFO upon Respondent in this case. And, even if Cambridge Legal was Respondent's attorney of record in the instant case, there is no proof of service for the court's order shortening time or the court's order denying Petitioner's request for temporary emergency orders.

Respondent filed no Responsive Declaration.

Due to the lack of valid service upon Respondent, the court denies Petitioner's RFO without prejudice.

TENTATIVE RULING #2: DUE TO THE LACK OF VALID SERVICE UPON RESPONDENT IN THIS CASE, THE COURT DENIES PETITIONER'S RFO WITHOUT PREJUDICE. NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

¹ It appears that Petitioner's request to set aside the temporary DVRO in Case No. 26FL0537 would need to be filed in that case. The court notes there is a hearing in Case No. 26FL0537 currently scheduled for October 22, 2025.

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL
RULE 8.05.07.**